

TENTATIVE RULING

Case: **Kalmykov v. Shell Point Mortgage Servicing et al.**
Case No. CV2023-0547

Hearing Date: **March 5, 2026** **Department Eleven** **9:00 a.m.**

Defendant The Mortgage Law Firm, PLC's motion for summary judgment is **DENIED**. (Code Civ. Proc., § 437c, subd. (p)(2).) The Court finds that defendant has not shown that its [second] motion for summary judgment is based on newly discovered facts or circumstances or a change of law; thus, is precluded by statute. (Code Civ. Proc., § 437c, subd. (f)(2); *Bagley v. TRW, Inc.* (1999) 73 Cal.App.4th 1092, 1096 - 1097.)

The notice of motion does not provide notice of this Court's tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: Mitchell v. Langston
Case No. CV2025-3055

Hearing Date: March 5, 2026 **Department Eleven** **9:00 a.m.**

Motion to disregard the November 24, 2025, Ninke declaration:

Defendant Theresa Langston (“defendant”) filed an untimely opposition. (Code Civ. Proc., § 1005, subd. (b) [all papers opposing a motion must be filed with the court and a copy served on each party at least nine court days before the hearing].) Despite being untimely, the Court will consider defendant’s opposition. (Cal. Rules of Court, rule 3.1300(d); *Rancho Mirage Country Club Homeowners Assn. v. Hazelbaker* (2016) 2 Cal.App.5th 252, 262 [stating that “a trial court has broad discretion to accept or reject late-filed papers”].)

Plaintiff Frederick Mitchell’s (“plaintiff”) motion for a court order to disregard the false “declaration of demurring or moving party regarding meet and confer” filed on November 24, 2025, under penalty of perjury as to defendant and to enter default and default judgment nunc pro tunc to November 25, 2025, is **DENIED**. The Court finds that plaintiff fails to provide sufficient legal authority to support the relief requested in this motion. (Cal. Rules of Court, rule 3.1113(b); see *Quantum Cooking Concepts, Inc. v. LV Associates, Inc.* (2011) 197 Cal.App.4th 927, 934, citing *Chavez v. Netflix, Inc.* (2008) 162 Cal.App.4th 43, 52 [where a motion is supported by a deficient memorandum, the trial court is justified in denying the motion on procedural grounds]; see also *Hood v. Gonzales* (2019) 43 Cal.App.5th 57, 73–74, citing *Sprague v. Equifax, Inc.* (1985) 166 Cal.App.3d 1012, 1050 [every brief should contain a legal argument with citation of authorities on the points made and if none is furnished on a particular point, the court may treat it as waived and pass it without consideration].)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

Demurrer:

Plaintiff’s objection to defendant’s demurrer on jurisdictional grounds and standing is **OVERRULED**.

Defendant’s demurrer is **SUSTAINED WITHOUT LEAVE TO AMEND**. (Code Civ. Proc., § 430.10, subd. (e).) The Court finds that all causes of action asserted in plaintiff’s complaint are barred by the litigation privilege. (Civ. Code, § 47, subd. (b); *Rusheen v. Cohen* (2006) 37 Cal.4th 1048, 1052; *Dickinson v. Cosby* (2017) 17 Cal.App.5th 655, 681-82; *Tom Jones Enterprises, Ltd. v. County of Los Angeles* (2013) 212 Cal.App.4th 1283, 1294; Complaint, ¶¶ 8-53, 60-65, 67-90, 125-142, 156-168, 198-222.) The Court further finds that plaintiff has not shown how the defects of these causes of action can be cured by amendment. (See *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318; *Cooper v. Leslie Salt Co.* (1969) 70 Cal.2d 627, 636 [“[t]he burden of proving such reasonable possibility is squarely on the plaintiff”]; *Goodman v. Kennedy* (1976) 18 Cal.3d 335, 349; *Schifando v. City of Los Angeles* (2003) 31 Cal.4th 1074, 1081 [“plaintiff has the burden of proving that an amendment would cure the defect”].)